

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the Trade Practices Act
1974 by Agilent Technologies, Inc. and Agilent
Technologies Australia Pty Ltd

30 March 2010

UNDERTAKING

Given under section 87B

TRADE PRACTICES ACT 1974

Undertaking to the Australian Competition and Consumer Commission ("ACCC")

by Agilent Technologies, Inc. ("Agilent Inc.") and Agilent Technologies Australia Pty Ltd ACN 088 510 605 ("Agilent Australia") (together "Agilent")

1 Person giving the Undertaking

This undertaking is given to the ACCC by Agilent on behalf of itself and its Related Bodies Corporate.

2 Background

- 2.1 Agilent Inc., a Delaware corporation headquartered in the US, designs, develops, manufactures, markets, sells and services electronic and bio-analytical measurement products (including laboratory analytical and life science instruments). Agilent Australia is responsible for Agilent's Australian operations.
- 2.2 Varian, Inc. ("Varian"), headquartered in the US, designs, develops, manufactures, markets, sells and services scientific instruments (including laboratory analytical and life science instruments) and vacuum products. Varian's Australian operations are managed by Varian Holdings (Australia) Pty Ltd and operated by Varian Australia Pty Ltd.
- 2.3 On 26 July 2009, Agilent Inc. and Varian (collectively the "**Merger Parties**") entered into an agreement and plan of merger as a result of which Varian would become a wholly-owned subsidiary of and be solely controlled by Agilent Inc. ("**Proposed Merger**").

The European Commission

- 2.4 The European Commission ("**EC**") has conducted its review of the Proposed Merger and its likely impact within the European Economic Area ("**EEA**"), and determined through its market investigations that the Proposed Merger would likely result in the removal of an effective competitor in the following four relevant product areas in the EEA:
- (a) micro/portable gas chromatography instruments ("**micro/portable GC**");
 - (b) laboratory gas chromatography instruments ("**laboratory GC**");
 - (c) triple quadrupole gas chromatography mass spectrometry instruments ("**triple quad GC-MS**"); and
 - (d) inductively coupled plasma mass spectrometry instruments ("**ICP-MS**"). (The above four product areas are collectively referred to as the "**Relevant Product Areas**")
- 2.5 In order to avoid delay in securing clearance from the EC, the Merger Parties have agreed to global divestments in relation to each of the Relevant Product Areas, as reflected in the commitments offered to and accepted by the EC ("**EC Commitments**"), a non-confidential version of which is attached as Schedule A. The EC has cleared the Proposed Merger subject to such EC Commitments. Discussions with the United States Federal Trade Commission about similar commitments are still ongoing.

- 2.6 In seeking to comply with the EC Commitments, Agilent Inc. has concluded an asset purchase agreement with Inficon, Inc. (“**Inficon**”), pursuant to which Inficon intends to acquire the global micro/portable GC business of Agilent, as described in section B(4)(a) of the EC Commitments (“**Micro GC Divestment Business**”).
- 2.7 In seeking to comply with the EC Commitments, Agilent Inc. has also concluded an asset purchase agreement with Bruker Corporation (“**Bruker**”), pursuant to which Bruker intends to acquire the following businesses:
- (a) the global laboratory GC business of Varian, as described in section B(4)(b) of the EC Commitments (“**Laboratory GC Divestment Business**”);
 - (b) the global triple quad GC-MS business of Varian, as described in section B(4)(c) of the EC Commitments (“**Triple quad GC-MS Divestment Business**”); and
 - (c) the global ICP-MS business of Varian, as described in section B(4)(d) of the EC Commitments (“**ICP-MS Divestment Business**”).

The ACCC's review

- 2.8 The Merger Parties provided a submission and requested ACCC clearance on 16 October 2009. The ACCC commenced its review of the Proposed Merger on 29 October 2009, undertaking market inquiries and considering information provided by the Merger Parties, industry participants and other interested third parties. The ACCC's inquiries were aimed at assessing whether or not the Proposed Merger would have the effect or likely effect of substantially lessening competition in any market in Australia, in contravention of section 50 of the *Trade Practices Act 1974* (“**Act**”).

The ACCC's competition concerns

- 2.9 The ACCC considered that, in the absence of this Undertaking, the Proposed Merger would have the effect or likely effect of substantially lessening competition in relation to the supply in Australia of:
- (a) micro/portable GC products;
 - (b) laboratory GC products;
 - (c) triple quad GC-MS products; and
 - (d) ICP-MS products. (Collectively referred to as the “**Relevant Markets**”)
- 2.10 The ACCC considered that, in the absence of this Undertaking, the Proposed Merger would significantly increase concentration among suppliers in Australia in each of the Relevant Markets. Additionally, the merged firm would be the most significant Australian supplier in each of the Relevant Markets and would possess the largest installed base of customers of any individual Australian supplier. In relation to the markets for the supply in Australia of micro/portable GC products, the Proposed Merger would remove the only significant competitor to Agilent. In relation to the other Relevant Markets, the ACCC's inquiries revealed that many customers considered Agilent and Varian to be their first and second choice of supplier.
- 2.11 Although most of the identified products are currently imported by manufacturers for supply in Australia, only a very small proportion of products are procured via direct imports by customers or via third party importers. This is largely due to the strong preference of customers for suppliers with an Australian presence to ensure timely and reliable after-sales service and support. Therefore, the ACCC considered that actual or potential direct imports by customers, as opposed to imports supplied via original manufacturers, would be unlikely to effectively constrain the

merged firm. The ACCC noted that for relatively less complex instruments such as micro/portable GC and laboratory GC products, an overseas supplier with a trusted and reliable product and established and effective Australian third party distribution arrangements would be expected to constrain incumbent Australian suppliers. However, the ACCC noted that, in the absence of this Undertaking, there would remain few if any significant and trusted overseas manufacturers of the relevant products that are not already represented in Australia.

- 2.12 The ACCC considered that, in the absence of this Undertaking, the remaining alternative suppliers in the Relevant Markets would be limited in their ability to effectively constrain the merged firm. This is largely due to limited switching of suppliers by customers, combined with alternative suppliers' smaller installed base of Australian customers, less extensive Australian distribution and after-sales service and support networks, and lower levels of customer familiarity and trust.
- 2.13 The ACCC's inquiries indicated that the Relevant Markets are characterised by high barriers to entry and expansion. This is largely due to the long lead times and sunk costs involved in conducting the required product research and development, establishing manufacturing facilities, building a reputation for product reliability and quality, and establishing Australian infrastructure for product distribution, servicing and support. Further, limited customer switching and the small size of Australian demand for the products relative to other jurisdictions provide limited financial incentives for existing competitors or potential new entrants to make the required investment in Australia.
- 2.14 The ACCC therefore considered that, in the absence of this Undertaking, the Proposed Merger would have the effect or likely effect of substantially lessening competition in the Relevant Markets.

The proposed divestitures

- 2.15 While Agilent does not agree with this assertion in relation to Australia, in the light of the global divestment commitments accepted by the EC, Agilent offers this Undertaking to the ACCC for the purposes of expediting clearance of the Proposed Merger in Australia.
- 2.16 This Undertaking incorporates Agilent's commitment to the EC to globally divest, or procure the divestiture of, the following businesses:
- (a) the Micro GC Divestment Business to Inficon;
 - (b) the Laboratory GC Divestment Business to Bruker;
 - (c) the Triple quad GC-MS Divestment Business to Bruker; and
 - (d) the ICP-MS Divestment Business to Bruker. (Collectively referred to as the "**Divestment Businesses**")
- 2.17 The objective of this Undertaking is to address the ACCC's competition concerns which would otherwise arise as a consequence of the Proposed Merger.
- 2.18 This Undertaking addresses the ACCC's competition concerns by:
- (a) ensuring that the Divestment Businesses are sold to an ACCC approved purchaser or purchasers with established and effective Australian distribution arrangements;
 - (b) creating or strengthening viable, effective, stand-alone, independent and long term competitors for the supply of those products that form part of the Divestment Businesses;

- (c) ensuring that the purchasers of the Divestment Businesses have the necessary assets to compete effectively with Agilent in the Relevant Markets; and
- (d) enabling the purchasers of the Divestment Businesses to constrain Agilent:
 - (i) in the supply of products; and
 - (ii) from increasing the price of products, or decreasing the quality of its service, in the Relevant Markets.

3 Commencement and Termination of Undertaking

3.1 This Undertaking comes into effect on the date when:

- (a) the Undertaking is executed by Agilent; and
- (b) the Undertaking so executed is accepted by the ACCC.

3.2 This Undertaking will terminate on the earlier of:

- (a) the Divestiture Date; and
- (b) the date on which the ACCC consents in writing to the withdrawal of this Undertaking in accordance with section 87B of the Act.

4 Undertakings

4.1 EC Commitments

Agilent will comply with the EC Commitments insofar as they relate to the Divestment Businesses.

4.2 Sale of the Micro GC Divestment Business

- (a) The ACCC has approved, as a condition precedent to accepting this Undertaking, Inficon as the Approved Purchaser of the Micro GC Divestment Business on the basis of the following:
 - (i) Inficon is independent of, and has no direct or indirect interest in, Agilent;
 - (ii) Inficon is of good financial standing and has an intention to maintain and operate the Micro GC Divestment Business as a going concern;
 - (iii) Inficon is able to conduct the Micro GC Divestment Business effectively; and
 - (iv) the sale of the Micro GC Divestment Business to Inficon will address the ACCC's competition concerns in relation to the supply of micro/portable GCs, including the likely long term viability and competitiveness of the Micro GC Divestment Business under the ownership of Inficon.

4.3 Sale of the Laboratory GC, Triple quad GC-MS and the ICP-MS Divestment Businesses

- (a) The ACCC has approved, as a condition precedent to accepting this Undertaking, Bruker as the Approved Purchaser of the:
 - (i) the Laboratory GC Divestment Business;

- (ii) the Triple quad GC-MS Divestment Business; and
 - (iii) the ICP-MS Divestment Business.
- (b) The ACCC has approved Bruker as the Approved Purchaser on the basis of the following:
- (i) Bruker is independent of, and has no direct or indirect interest in, Agilent;
 - (ii) Bruker is of good financial standing and has an intention to maintain and operate each of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses as going concerns;
 - (iii) Bruker is able to conduct each of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses effectively; and
 - (iv) the sale of each of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses to Bruker will address the ACCC's competition concerns in relation to the supply of Laboratory GC, Triple quad GC-MS and ICP-MS products, including the likely long term viability and competitiveness of each of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses under the ownership of Bruker.

4.4 Further commitments regarding the Divestment Businesses in Australia

- (a) If for any reason:
- (i) the sale to Inficon of the Micro GC Divestment cannot be completed; and/or
 - (ii) the sale to Bruker of any one or more of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses cannot be completed,
- and, in order to comply with the EC Commitments, Agilent Inc. seeks to conclude a Sale Agreement or Asset Purchase Agreement with another purchaser ("**Proposed Purchaser**"), Agilent undertakes to comply with clause 5 below.
- (b) Agilent undertakes to procure that the Monitoring Trustee provide to the ACCC a copy of each report (including any confidential version) provided to the EC that indicates the progress of Agilent's compliance with the EC Commitments within 2 (two) Business Days of providing such report to the EC.
- (c) Agilent undertakes to procure that the Divestiture Trustee provide to the ACCC a copy of each report (including any confidential version) provided to the EC that indicates the progress of the divestiture process in relation to the EC Commitments within 2 (two) Business Days of providing such a report to the EC.

5 Approval of Proposed Purchaser

5.1 Sale of Divestment Businesses only to Approved Purchaser

Agilent must sell the Divestment Businesses to the Approved Purchasers, and must not authorise the Divestiture Trustee to sell the Divestment Businesses to a purchaser other than an Approved Purchaser.

5.2 Proposed Purchaser Notice

- (a) In the event that:

- (i) the sale to Inficon of the Micro GC Divestment Business is not completed, and Agilent Inc. seeks to conclude a Sale or Asset Purchase Agreement with a Proposed Purchaser, or
- (ii) the sale to Bruker of any of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses is not completed, and Agilent Inc. seeks to conclude a Sale or Asset Purchase Agreement with a Proposed Purchaser in relation to one or more of the Laboratory GC, Triple quad GC-MS and ICP-MS Divestment Businesses:

Agilent will give written notice to the ACCC ("**Proposed Purchaser Notice**"), containing:

- (i) the name, address, telephone number and any other available contact details of the Proposed Purchaser;
 - (ii) a copy of the proposed Sale or Asset Purchase Agreement;
 - (iii) a description of the business carried on by the Proposed Purchaser, including the locations in which the Proposed Purchaser carries on its business;
 - (iv) details of the Proposed Purchaser's experience in the relevant markets;
 - (v) the names of the owner and the directors of the Proposed Purchaser; and
 - (vi) a submission from Agilent addressing the factors set out in clause 5.3(b).
- (b) Agilent will provide a Proposed Purchaser Notice to the ACCC at least 20 Business Days prior to the end of the Divestiture Period.

5.3 Approval Notice

- (a) The ACCC may, within 15 Business Days after receipt by the ACCC of the Proposed Purchaser Notice, or such further period as is required by the ACCC and notified to Agilent in writing prior to the expiration of the 15 Business Day period, provide Agilent with written notice ("**Approval Notice**") stating that the Proposed Purchaser is an Approved Purchaser.
- (b) Without limiting the discretion of the ACCC, in making a decision to provide an Approval Notice, the factors that the ACCC will consider include whether:
 - (i) the Proposed Purchaser is independent of, and has no direct or indirect interest in, Agilent;
 - (ii) the Proposed Purchaser is of good financial standing and has an intention to maintain and operate the particular Divestment Business as a going concern;
 - (iii) the Proposed Purchaser is able to conduct the particular Divestment Business effectively; and
 - (iv) the sale of the particular Divestment Business will address any competition concerns of the ACCC, including the likely long-term viability and competitiveness of the particular Divestment Business under the ownership of the Proposed Purchaser.

5.4 Refusal to provide an Approval Notice

If the ACCC refuses to provide an Approval Notice in relation to a Proposed Purchaser, it will advise Agilent of such refusal in writing.

6 Appointment of Divestiture Trustee

6.1 Agilent must procure that the terms of appointment of the Divestiture Trustee include obligations to the effect that the Divestiture Trustee:

- (a) must divest the Divestment Businesses to an Approved Purchaser or Approved Purchasers, approved by the ACCC in accordance with clause 5 of this Undertaking with the Divestiture Trustee acting in place of Agilent; and
- (b) must provide a Proposed Purchaser Notice to the ACCC in accordance with clause 5 of this Undertaking at least 20 Business Days prior to the end of the Trustee Divestiture Period.

6.2 Agilent must provide the ACCC with a copy of the executed terms of appointment of the Divestiture Trustee within 2 (two) Business Days of execution.

7 Jurisdiction

7.1 Agilent submits to the jurisdiction of the Federal Court of Australia in relation to this Undertaking.

7.2 Notwithstanding clause 13.2, unless and until notified in writing by Agilent Australia to the ACCC of the appointment of another person as agent within Australia, Agilent irrevocably appoints Agilent Australia as its agent for the purposes of any service of process in relation to this Undertaking.

8 Information

8.1 Agilent must notify the ACCC in writing of the occurrence of:

- (a) the completion of the Proposed Merger within 2 (two) Business Days of the Consummation Date; and
- (b) the divestiture of each of the Divestment Businesses within 2 (two) Business Days of Closing.

8.2 Agilent must provide the ACCC with a copy of the executed Sale or Asset Purchase Agreement, and any other agreements between Agilent and an Approved Purchaser relating to the sale of the Divestment Businesses within 2 (two) Business Days of any such agreement being executed.

8.3 Agilent must respond in a timely manner to any questions or requests for information or documents made by the ACCC (including by a person authorised by the ACCC under clause 15.1(o)) about this Undertaking.

8.4 The ACCC may request information from the Monitoring Trustee or Divestiture Trustee directly at any time and the Monitoring Trustee or Divestiture Trustee will provide the information so requested directly to the ACCC, or as otherwise required by the ACCC.

8.5 In respect of Agilent's compliance with this Undertaking, the ACCC may direct Agilent to, and Agilent must:

- (a) provide to the ACCC information, documents and materials that are within Agilent's custody, power or control, in the time and in the form requested by the ACCC; and/or
 - (b) direct its personnel, including its directors, contractors, managers, officers, employees and agents, to attend the ACCC at a time and place appointed by the ACCC, following consultation with Agilent, to answer any questions the ACCC (including its Commissioners, its staff or its agents) may have.
- 8.6** In respect of Agilent's compliance with this Undertaking, the ACCC may request the Monitoring Trustee or the Divestiture Trustee to produce information, documents and materials to the ACCC that may be within the Monitoring Trustee or Divestiture Trustee's custody, power or control in the time and in the form requested by the ACCC.
- 8.7** Agilent will use its best endeavours to ensure that the Monitoring Trustee and Divestiture Trustee comply with any request from the ACCC in accordance with clauses 8.4 and 8.6.
- 8.8** Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 8 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 8.9** Any direction made by the ACCC under clause 8.5 will be notified to the Legal Counsel of Agilent in accordance with clause 13.2.
- 8.10** The ACCC may in its discretion:
- (a) advise the Monitoring Trustee or Divestiture Trustee of any request made by it under this clause 8; and/or
 - (b) provide copies to the Monitoring Trustee or Divestiture Trustee of any information furnished, documents and material produced or information given to it under this clause 8.
- 8.11** Nothing in this clause 8 requires the provision of information or documents in respect of which Agilent has a claim of legal professional privilege.

9 Confidentiality and Disclosure

- 9.1** Agilent acknowledges that the ACCC may:
- (a) make this Undertaking publicly available;
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 9.2** Nothing in this clause 9 prevents the ACCC from disclosing such information contained within this Undertaking as:
- (a) is required by law;
 - (b) is permitted by section 155AAA of the Act; or
 - (c) is necessary for the purpose of enforcement action under section 87B of the Act.
- 9.3** Nothing in this clause 9 prevents the ACCC from using the information contained within this Undertaking for any purpose consistent with its statutory duties and functions.

10 Obligation to procure

Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Agilent to take or refrain from taking some action, Agilent will procure that Related Body Corporate to take or refrain from taking that action, as the case may be.

11 No Derogation

- 11.1** This Undertaking does not prevent the ACCC from taking enforcement action at any time, whether during or after the period of this Undertaking, in respect of any breach by Agilent of any term of the Undertaking.
- 11.2** Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Agilent does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

12 Costs

- 12.1** Agilent will pay all of its own costs incurred in relation to this Undertaking.

13 Notices

- 13.1** Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Name: Australian Competition and Consumer Commission
Address: 23 Marcus Clarke Street
CANBERRA ACT 2601
Fax number: (02) 6243 1212
Attention: Executive General Manager, Mergers and Acquisitions Group

- 13.2** Any notice or communication to Agilent pursuant to this Undertaking must be sent to:

Name: Agilent Technologies, Inc.
Address: 5301 Stevens Creek Boulevard
Santa Clara, CA 95051
Fax Number: +1 (408) 553 7602
Attention: Marie Oh Huber (General Counsel)

With copies to:

Name: Mallesons Stephen Jaques
Address: Level 61 Governor Phillip Tower
1 Farrer Place, Sydney NSW 2000
Fax No: (02) 9296 3999
Attention: Dave Poddar (Partner)

- 13.3** If Agilent or the ACCC gives the other 3 (three) Business Days' notice of a change to its address or fax number, any notice or communication is only given to the relevant entity if it is delivered, posted or faxed to the most recently advised address or fax number.

14 Definitions

14.1 The meanings of the terms used in this document are set out below.

“ACCC” means the Australian Competition and Consumer Commission and includes any external advisers, consultants or agents engaged by the ACCC to assess compliance with this Undertaking or to undertake work or provide services in relation to the Proposed Merger.

“Act” means the *Trade Practices Act 1974* (Cth).

“Agilent” means Agilent Inc. and Agilent Australia and their Related Bodies Corporate.

“Agilent Australia” means Agilent Technologies Australia Pty Ltd ACN 088 510 605.

“Agilent Inc.” means Agilent Technologies, Inc. a Delaware corporation.

“Approval Notice” means a notice given by the ACCC pursuant to clause 5.3.

“Approved Purchaser” means a Proposed Purchaser of one or more of the Divestment Businesses who has been approved by the ACCC as provided for in clause 4.2, 4.3 or 5.

“Business Day” means a day other than a Saturday or Sunday on which banks are open for business generally in New South Wales.

“Bruker” means Bruker Corporation, a Delaware Corporation.

“Closing” has the meaning given in the EC Commitments.

“Consummation Date” has the meaning given in the EC Commitments.

“Divestiture Date” means the date on which Agilent no longer has ownership or control (direct or indirect) of the Divestment Businesses. If the Divestiture Businesses are sold to separate purchasers, this date means the date on which the last of the Divestment Businesses is disposed of and which the ACCC declares to be the Divestiture Date in accordance with this Undertaking.

“Divestiture Period” means the period of 6 months from the Effective Date.

“Divestiture Trustee” has the meaning given in the EC Commitments.

“Divestment Businesses” means collectively the businesses to be divested as reflected in clause 2.16.

“EC” means European Commission.

“EC Clearance Decision” means the confidential decision issued by the EC on 20 January 2010, clearing the Proposed Merger pursuant to Article 6(1)(b) of the European Community Merger Regulation.

“EC Commitments” means the commitments provided to the EC by the Merger Parties, pursuant to Article 6(2) of European Council Regulation No 139/2004, enabling the EC to clear the Proposed Merger. A reference to “EC Commitments” in this Undertaking includes any amendments made to those commitments in accordance with Section F, paragraph 33 of the EC Commitments.

“EEA” means European Economic Area.

“Effective Date” means the date of adoption of the EC Clearance Decision.

“ICP-MS” means inductively coupled plasma mass spectrometry instruments.

“ICP-MS Divestment Business” means the global ICP-MS business of Varian, as described in section B(4)(d) of the EC Commitments, attached as Schedule A to this Undertaking.

“Inficon” means Inficon, Inc., a Delaware Corporation.

“Laboratory GC” means laboratory gas chromatography instruments.

“Laboratory GC Divestment Business” means the global laboratory GC business of Varian, as described in section B(4)(b) of the EC Commitments, attached as Schedule A to this Undertaking.

“Merger Parties” means Agilent Inc. and Varian.

“Micro/portable GC” means micro/portable gas chromatography instruments.

“Micro GC Divestment Business” means the global micro/portable GC business of Agilent, as defined in section B(4)(a) of the EC Commitments, attached as Schedule A to this Undertaking.

“Monitoring Trustee” means one or more natural or legal person(s), independent from the Merger Parties, who is (are) approved by the EC and appointed by Agilent, and who has (have) the duty to monitor Agilent’s compliance with the conditions and obligations attached to the EC Clearance Decision.

“Proposed Merger” means the acquisition by Agilent Inc. of Varian pursuant to the agreement and plan of merger signed between the Merger Parties on 26 July 2009.

“Proposed Purchaser” means any proposed purchaser in respect of whom Agilent has provided the ACCC with a Proposed Purchaser Notice.

“Proposed Purchaser Notice” means the notice referred to in clause 5.2.

“Related Body Corporate” has the meaning given in section 50 of the Corporations Act.

“Relevant Markets” collectively refers to the markets in Australia for the supply of: micro/portable GC products; laboratory GC products; triple quad GC-MS products; and ICP-MS products.

“Relevant Product Areas” collectively refers to micro/portable GCs, laboratory GCs, ICP-MS and triple quad GC-MSs.

“Sale or Asset Purchase Agreement” means an agreement between Agilent and a Proposed Purchaser for purposes of the divestiture of one or more of the Divestment Businesses.

“Triple quad GC-MS” means triple quadrupole gas chromatography mass spectrometry instruments”.

“Triple quad GC-MS Divestment Business” means the global triple quad GC-MS business of Varian, as described in section B(4)(c) of the EC Commitments, attached as Schedule A to this Undertaking.

“Trustee Divestiture Period” has the meaning given in the EC Commitments.

“Undertaking” is a reference to all the provisions of this document, including its Schedules.

“Varian” means Varian, Inc., together with its Related Bodies Corporate.

15 Interpretation

15.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) A reference to 'this Undertaking' includes all of the provisions of this document including its Schedules.
- (b) Headings are inserted for convenience only and do not affect the interpretation of this Undertaking.
- (c) If the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day.
- (d) A reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision.
- (e) A reference in this Undertaking to any company includes its Related Bodies Corporate.
- (f) A reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced.
- (g) A reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking.
- (h) An expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency.
- (i) Where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning.
- (j) A word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders.
- (k) A reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation.
- (l) A construction that would promote the purpose or object underlying the Undertaking (whether expressly stated or not) shall be preferred to a construction that would not promote that purpose or object.
- (m) Material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause as the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking.

- (n) In determining whether consideration should be given to any material in accordance with clause 15.1(m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to:
 - (i) the effect that reliance on the ordinary meaning conveyed by the text of the clause would have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) the need to ensure that the result of the Undertaking is to completely address any competition concerns that the ACCC may have.
- (o) The ACCC may authorise the Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose.
- (p) In performing its obligations under this Undertaking, Agilent will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking.
- (q) A reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

SIGNED by Stephen D. Williams as
authorised representative for Agilent
Technologies, Inc. in the presence of:

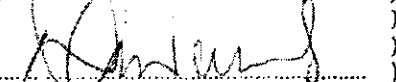

Signature of witness

MARIE OH HUBER
Name of witness (block letters)

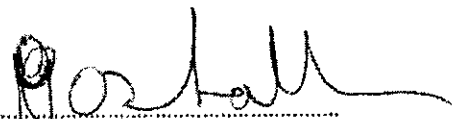

By executing this agreement the
signatory warrants that the signatory is
duly authorised to execute this
agreement on behalf of Agilent
Technologies, Inc.

Date: 30th MARCH 2010

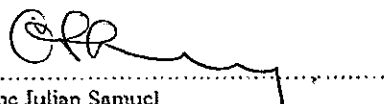
SIGNED by Grant P. Marshall as
authorised representative for Agilent
Technologies Australia Pty Ltd in the
presence of:


Signature of witness

DAVID WEEKS
Name of witness (block letters)


By executing this agreement the
signatory warrants that the signatory is
duly authorised to execute this
agreement on behalf of Agilent
Technologies Australia Pty Ltd.

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the Trade
Practices Act 1974


Graeme Julian Samuel
Chairman

31 March 2010
Date

Schedule A - EC Commitments (Public Version)

European Commission – Merger Task Force
DG Competition
Rue Joseph II 70 Jozef-II straat
B-1000 BRUSSELS

Case M.5611 – Agilent/Varian

174. COMMITMENTS TO THE EUROPEAN COMMISSION

Pursuant to Article 6(2) of Council Regulation (EC) No 139/2004 (the “*Merger Regulation*”), Agilent Technologies, Inc. (“*Agilent*”) hereby provides the following Commitments (the “*Commitments*”) in order to enable the European Commission (the “*Commission*”) to declare the acquisition of sole control over Varian, Inc., the ultimate parent company of the Varian Group (“*Varian*”) by Agilent (the “*Transaction*”) compatible with the common market and the EEA Agreement by its decision pursuant to Article 6(1)(b) of the Merger Regulation (the “*Decision*”).

The Commitments shall take effect upon the date of adoption of the Decision.

This text shall be interpreted in the light of the Decision to the extent that the Commitments are attached as conditions and obligations, in the general framework of Community law, in particular in the light of the Merger Regulation, and by reference to the Commission Notice on remedies acceptable under Council Regulation (EC) No 139/2004 and under Commission Regulation (EC) No 802/2004.

174.1.1. Section A. Definitions

For the purpose of the Commitments, the following terms shall have the following meaning:

Affiliated Undertakings: undertakings controlled by the Parties and/or by the ultimate parents of the Parties, whereby the notion of control shall be interpreted pursuant to Article 3 Merger Regulation and in the light of the Commission Consolidated Jurisdictional Notice under Council Regulation (EEC) No 139/2004 on the control of concentrations between undertakings.

Closing: the transfer of the legal title of each Divestment Business to the respective purchaser. The term ‘Closing’ in Section B, paragraphs 4(a) to 4(d) shall be construed to exclusively refer to, in the relevant context, the transfer of the legal title of the respective Divestment Business described in Section B, paragraphs 4(a) to 4(d).

Consummation Date: the date on which the Agreement and Plan of Merger that was signed on 26 July 2009 by and between Agilent, Varian and Cobalt Acquisition Corp (Cobalt) will be consummated by way of a merger of Cobalt with Varian, as a result of which Varian will exist as a wholly-owned subsidiary of Agilent.

Micro/portable GC Commitment: the commitment to divest the Agilent business relating to manufacture and sale of micro/portable GC systems as defined in Section B and Schedule A (*Micro/portable GC Divestment Business*).

Laboratory GC Commitment: the commitment to divest the Varian business relating to the manufacture and sale of laboratory GC systems as defined in Section B and Schedule B (*Laboratory GC Divestment Business*).

Triple Quadrupole GC-MS Commitment: the commitment to divest the Varian business relating to the manufacture and sale of Triple Quadrupole GC-MS systems defined in Section B and Schedule C (*Triple Quadrupole GC-MS Divestment business*).

ICP-MS Commitment: the commitment to divest the Varian business relating to the manufacture and sale of ICP-MS systems as defined in Section B and Schedule D (*ICP-MS Divestment Business*).

Divestment Business or Divestment Businesses: the business or businesses as defined in Section B and Schedules A to D. The singular term ‘Divestment Business’ shall be deemed to include, as the case may be, all below-defined Divestment Businesses.

Divestiture Trustee: one or more natural or legal person(s), independent from the Parties, who is (are) approved by the Commission and appointed by Agilent and who has (have) received from Agilent the exclusive Trustee Mandate to sell the Divestment Business to a purchaser at no minimum price.

Effective Date: the date of adoption of the Decision.

First Divestiture Period: the period of [...] months from the Effective Date.

Hold Separate Manager: the person(s) appointed by Agilent for the Divestment Businesses to manage the day-to-day business under the supervision of the Monitoring Trustee.

Key Personnel: all personnel necessary to maintain the viability and competitiveness of the Divestment Businesses, as listed in the Schedules.

Monitoring Trustee: one or more natural or legal person(s), independent from the Parties, who is (are) approved by the Commission and appointed by Agilent, and who has (have) the duty to monitor Agilent’s compliance with the conditions and obligations attached to the Decision.

Personnel: all personnel currently employed by the Divestment Businesses, including Key Personnel, staff seconded to the Divestment Businesses, shared personnel and the additional personnel listed in the Schedules.

Purchaser: the respective entity approved by the Commission as acquirer of one or more of the Divestment Businesses in accordance with the criteria set out in Section D. The term ‘Purchaser’ in Section B, paragraphs 4(a) to 4(d) shall be construed to exclusively refer to, in the relevant context, the purchaser of the respective Divestment Businesses described in Section B, paragraphs 4(a) to 4(d).

Trustee(s): the Monitoring Trustee and the Divestiture Trustee.

Trustee Divestiture Period: the period of [...] months from the end of the First Divestiture Period.

Section B. The Divestment Businesses

Commitment to divest the Divestment Businesses

1. In order to restore effective competition,

Agilent commits to divest, or procure the divestiture of the Divestment Businesses by the end of the Trustee Divestiture Period as a going concern to one or several purchasers and on terms of sale approved by the Commission in accordance with the procedure described in Section D, paragraph 14. To carry out the divestiture, Agilent commits to finding one or more purchasers and to enter into, or to cause Varian to enter into, final binding sale and purchase agreements for the sale of the Divestment Businesses within the First Divestiture Period. If Agilent has not entered into such agreements at the end of the First Divestiture Period, Agilent shall grant the Divestiture Trustee an exclusive mandate to sell the Divestment Businesses in accordance with the procedure described in Section E, paragraph 23 in the Trustee Divestiture Period. The proposed concentration shall not be implemented unless and until Agilent or the Divestiture Trustee has entered into final binding sale and purchase agreements for the sale of each of the Divestment Businesses and the Commission has approved the Purchaser(s) and the terms of sale in accordance with paragraph 14.

2. Agilent shall be deemed to have complied with the Commitments if, by the end of the Trustee Divestiture Period, Agilent or Varian – as the case may be – have entered into a final binding sale and purchase agreement in relation to all Divestment Businesses with one or more purchaser/s, if the Commission approves the purchaser/s and the terms in accordance with the procedure described in Section D, paragraph 14 and if the Closing takes place within a period not exceeding [...] months after the approval of the purchaser/s and the terms of sale by the Commission.
3. In order to maintain the structural effect of the Commitments, the Parties shall, for a period of 10 years after the Effective Date, not acquire direct or indirect influence over the whole or part of the Divestment Businesses, unless the Commission has previously found that the structure of the market has changed to such an extent that the absence of influence over one or more of the Divestment Businesses is no longer necessary to render the proposed concentration compatible with the common market.

Structure and definition of the Divestment Businesses

4. The Commitments contained herein relate to the above defined Divestment Businesses.

- (a) The Micro/portable GC Divestment Business consists of Agilent's entire micro/portable GC business. The present legal and functional structure of the Micro/portable GC Divestment Business as operated to date, described in more detail in Schedule A, includes
- i. all tangible and intangible assets (including intellectual property rights), which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Micro/portable GC Divestment Business;
 - ii. to the extent that they can be assigned, all supplier and distribution contracts which relate exclusively to the Micro/Portable GC Divestment Business (subject to any necessary consents) and, to the extent possible, the transfer of the relevant part (being that part relating to the Micro/Portable GC

Divestment Business) of any agreement between Agilent and its distributors or suppliers which relates to the Micro/Portable GC Divestment Business and also to other Agilent businesses

- iii. all contracts, commitments and unfulfilled customer orders of the Micro/portable GC Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Micro/portable GC Divestment Business; all customer and other records of the Micro/portable GC Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Micro/portable GC Divestment Business (items referred to under (i)-(ii) hereinafter collectively referred to as "*Micro/portable GC Assets*");
- iv. all key personnel and personnel which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Micro/portable GC Divestment Business including in particular [...] additional sales specialists ([...] in the EU, [...] in Asia Pacific and [...] in the US) and [...] servicing specialist or, to the extent that there are any insurmountable obstacles to the transfer of such key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the Micro/portable GC Divestment Business;
- v. the transfer of two agreements with [...], relating to the supply of parts (mainly flow parts) and equipment maintenance services to the Micro/portable GC Divestment Business (subject to [...] consent); if no consent is given, Agilent will make the necessary arrangements for the supply of flow parts and equipment maintenance services to the Micro/portable GC Divestment Business;
- vi. at the request of the Purchaser, the benefit, for a transitional period of up to [...] after Closing, of the supply arrangements under which Agilent supplies manifold plates to the Micro/portable GC Divestment Business;
- vii. at the request of the Purchaser, and to the extent supply contracts with third parties cannot be assigned in accordance with paragraph 4(a)ii supply to the Purchaser by Agilent of all components required in the assembly of Micro/portable GC instruments at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request)
- viii. at the request of the Purchaser, a Transition Services Agreement, pursuant to which Agilent will offer to supply to the Purchaser, for a transitional period of [...] from Closing (extendable by a further [...] at the Purchaser's request), with other components and services required in the assembly of micro/portable GCs, as well as up to [...] of training;
- ix. at the request of the Purchaser, sales channel support, including cooperation with the Purchaser with a view to causing the VARs listed in Schedule A (at paragraph 2(d)(v)) and the current distributors of the Micro/portable GC Divestment Business listed in Annex Schedule A (7) (insofar as the relevant parts of the distribution agreements are not assigned) to continue selling the products of the Micro/portable GC Divestment Business after Closing in

some or all territories where Agilent currently sells micro/portable GCs via distributors or the relevant VARs.

- (b) The Laboratory GC Divestment Business consists of Varian's entire laboratory GC business. The present legal and functional structure of the Laboratory GC Divestment Business as operated to date, described in more detail in Schedule B, includes
- i. all tangible and intangible assets (including intellectual property rights), which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Laboratory GC Divestment Business;
 - ii. to the extent that they can be assigned, all supplier and distribution contracts which relate exclusively to the Laboratory GC Divestment Business (subject to any necessary consents) and, to the extent possible, the transfer of the relevant part (being that part relating to the Laboratory GC Divestment Business) of any agreement between Varian and its distributors or suppliers which relates to the Laboratory GC Divestment Business and also to other Varian businesses;
 - iii. all other contracts, commitments and unfulfilled customer orders of the Laboratory GC Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Laboratory GC Divestment Business; all customer, credit and other records of the Lab GC Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Laboratory GC Divestment Business (items referred to under (i)-(iii) hereinafter collectively referred to as "*Laboratory GC Assets*");
 - iv. all key personnel and personnel which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Laboratory GC Divestment Business or, or, to the extent that there are any insurmountable obstacles to the transfer of such key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the Laboratory GC Divestment Business;
 - v. subject to any necessary consents, the transfer of Varian's relationship with Varian's outsourcing partner [...] (regarding the manufacture of GC "cabinets" and other services);
 - vi. at the Purchaser's request, supply to the Purchaser by Varian of autosamplers (currently manufactured through its third party manufacturer [...]) at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request);
 - vii. at the request of the Purchaser and to the extent this supply contract cannot be assigned in accordance with paragraph 4(b)ii, supply to the Purchaser by Varian of autoinjectors (currently manufactured through third party manufacturers) at [...] transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request).

- viii. at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(b)ii, supply to the Purchaser by Varian of all components required in the assembly of Laboratory GC instruments at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request).
 - ix. at the request of the Purchaser, a Transition Services Agreement, pursuant to which the combined entity will offer to supply to the Purchaser, for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request), with the components, know-how and services required for the operation of the Laboratory GC Divestment Business;
 - x. at the request of the Purchaser, sales channel support, including cooperation with the Purchaser with a view to causing the current distributors of the Laboratory GC Divestment Business (insofar as the relevant parts of the distribution agreements are not assigned) to continue selling the products of the Laboratory GC Divestment Business after Closing in certain or all territories where Varian currently sells laboratory GC instruments via distributors.
- (c) The Triple Quadrupole GC-MS Divestment Business consists of Varian's entire triple quadrupole GC-MS business. The present legal and functional structure of the Triple Quadrupole GC-MS Divestment Business as operated to date, described in more detail in Schedule C, includes
- i. all tangible and intangible assets (including intellectual property rights), which contribute to the current operation or are necessary to ensure the viability and competitiveness of the Triple Quadrupole GC-MS Divestment Business;
 - ii. to the extent that they can be assigned, all supplier and distribution contracts which relate exclusively to the Triple Quadrupole GC-MS Divestment Business (subject to any necessary consents) and, to the extent possible, the transfer of the relevant part (being that part relating to the ICP-MS Divestment Business) of any agreement between Varian and its suppliers or distributors which relates to the Triple Quadrupole GC-MS Divestment Business and also to other Varian businesses;
 - iii. all other contracts, commitments and unfulfilled customer orders of the Triple Quadrupole GC-MS Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the GC-MS Triple Quadrupole Divestment Business; all customer, credit and other records of the Triple Quadrupole GC-MS Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the GC-MS Triple Quadrupole Divestment Business (items referred to under (i)-(iii) hereinafter collectively referred to as "*Triple Quadrupole GC-MS Assets*");
 - iv. all key personnel and personnel of the Triple Quadrupole GC-MS Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the GC-MS Triple

Quadrupole Divestment Business or, to the extent that there are any insurmountable obstacles to the transfer of such key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the GC-MS Triple Quadrupole Divestment Business;

- v. at the request of the Purchaser, the benefit, for a transitional period of [...] from Closing (extendable by a further [...] at the Purchaser's request), of the supply arrangements under which Varian currently supplies vacuum rotary and turbo pumps to the Triple Quadrupole GC-MS Divestment Business and a supply agreement relating to the supply of laboratory GCs from the Laboratory GC Divestment Business to the Triple Quadrupole GC-MS Divestment Business for a period of up to [...], in each case at [...]; such agreement shall also contain provision for an option in favour of the Triple Quad Divestment Business to extend the duration of such supply agreement for a further [...] on terms to be agreed between the Triple Quad Divestment Business and the purchaser of the Laboratory GC Divestment Business.
- vi. at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(c)ii, supply to the Purchaser by Varian of all components required in the assembly of Triple Quadrupole GC-MS instruments at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request);
- vii. at the request of the Purchaser, a Transition Services Agreement, pursuant to which the combined entity will offer to supply to the Purchaser, for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request), with the components, know-how and services required for the operation of the Triple Quadrupole GC-MS Divestment Business;
- viii. at the request of the Purchaser, sales channel support, including cooperation with the Purchaser with a view to causing the current distributors of the Triple Quadrupole GC-MS Divestment Business (insofar as the relevant parts of the distribution agreements are not assigned) to continue selling the products of the Triple Quadrupole GC-MS Divestment Business after Closing in certain or all territories where Varian currently sells Triple Quadrupole GC-MS instruments via distributors.

(d) The ICP-MS Divestment Business consists of Varian's entire ICP-MS business. The present legal and functional structure of the ICP-MS Divestment Business as operated to date, described in more detail in Schedule D, includes

- i. all tangible and intangible assets (including intellectual property rights), which contribute to the current operation or are necessary to ensure the viability and competitiveness of the ICP-MS Divestment Business;
- ii. to the extent that they can be assigned, all supplier and distribution contracts which related exclusively to the ICP-MS Divestment Business (subject to any necessary consents) and, to the extent possible, the transfer of the relevant part (being that part relating to the ICP-MS Divestment Business) of

any agreement between Varian and its distributors or suppliers which relates to the ICP-MS Divestment Business and also to other Varian businesses;

- iii. all other contracts, commitments and unfulfilled customer orders of the ICP-MS Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the ICP-MS Divestment Business; all customer, credit and other records of the ICP-MS Divestment Business (items referred to under (i)-(iii) hereinafter collectively referred to as "*ICP-MS Assets*");
- iv. all key personnel and personnel of the ICP-MS Divestment Business which contribute to the current operation or are necessary to ensure the viability and competitiveness of the ICP-MS Divestment Business or, to the extent that there are any insurmountable obstacles to the transfer of such key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the ICP-MS Divestment Business;
- v. at the request of the Purchaser, the benefit, for a transitional period of [...] from Closing (extendable by a further [...] at the Purchaser's request), of the supply arrangements under which Varian currently supplies rotary and turbo pumps to the ICP-MS Divestment Business at [...];
- vi. at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(d)ii, supply to the Purchaser by Varian of all components required in the assembly of ICP-MS instruments at [...] a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request);
- vii. at the request of the Purchaser, a Transition Services Agreement, pursuant to which the combined entity will offer to supply to the Purchaser, for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request), with the components, know-how and services required for the operation of the ICP-MS Divestment Business;
- viii. at the request of the Purchaser, sales channel support, including cooperation with the Purchaser with a view to causing the current distributors of the ICP-MS Divestment Business (insofar as the relevant parts of the distribution agreements are not assigned) to continue selling the products of the ICP-MS Divestment Business after Closing in certain or all territories where Varian currently sells ICP-MS instruments via distributors.

Section C. Related commitments

Preservation of Viability, Marketability and Competitiveness

- 5. From the Effective Date until Closing, Agilent shall preserve the economic viability, marketability and competitiveness of the Divestment Businesses, in accordance with good business practice, and shall minimise as far as possible any risk of loss of competitive potential of the Divestment Businesses. In particular Agilent undertakes:
 - (a) not to carry out any act upon its own authority that might have a significant adverse impact on the value, management or competitiveness of any of the Divestment

Businesses or that might alter the nature and scope of activity, or the industrial or commercial strategy or the investment policy of any of the Divestment Businesses;

- (b) to make available sufficient resources for the development of the Divestment Businesses, on the basis and continuation of the existing business plans;
- (c) to take all reasonable steps, including appropriate incentive schemes (based on industry practice), to encourage all Key Personnel to remain with the Divestment Businesses.

Hold-separate obligations of Parties

- 6. Agilent commits, from the Effective Date until Closing, to keep or to cause Varian to keep the Divestment Businesses separate from the businesses Agilent and Varian are retaining and to ensure that Key Personnel of the Divestment Businesses – including the Hold Separate Manager(s) – have no involvement in any business retained and vice versa. Agilent shall also ensure that the Personnel do not report to any individual outside the Divestment Businesses.
- 7. Until Closing, Agilent shall assist the Monitoring Trustee in ensuring that the Divestment Businesses are managed as distinct and saleable entities separate from the businesses retained by the Parties. Agilent shall appoint or shall cause Varian to appoint one or several Hold Separate Managers who shall be responsible for the management of the Divestment Businesses, under the supervision of the Monitoring Trustee. The Hold Separate Manager/s shall manage the Divestment Businesses independently and in the best interest of the business with a view to ensuring their continued economic viability, marketability and competitiveness and their independence from the businesses retained by the Parties.

Ring-fencing

- 8. Agilent shall implement and shall cause Varian to implement all necessary measures to ensure that Agilent or Varian do not after the Effective Date obtain any business secrets, know-how, commercial information, or any other information of a confidential or proprietary nature relating to the Divestment Businesses. In particular, the participation of the Divestment Businesses in a central information technology network shall be severed to the extent possible, without compromising the viability of the Divestment Businesses. Agilent may obtain information relating to the Divestment Businesses which is reasonably necessary for the divestiture of the Divestment Businesses or whose disclosure to Agilent or Varian is required by law.

Non-solicitation clause

- 9. The Parties undertake, subject to customary limitations (e.g. responses to general job advertisements), not to solicit, and to procure that Affiliated Undertakings do not solicit, the Key Personnel transferred with the Divestment Businesses for a period of [...] after Closing.

Due Diligence

- 10. In order to enable potential purchasers to carry out a reasonable due diligence of the Divestment Businesses, Agilent shall, subject to customary confidentiality assurances and dependent on the stage of the divestiture process:

- (a) provide to potential purchasers sufficient information as regards the Divestment Businesses;

- (b) provide to potential purchasers sufficient information relating to the Personnel and allow them reasonable access to the Personnel.

Reporting

- 11. Agilent shall submit written reports in English on potential purchasers of the Divestment Businesses and developments in the negotiations with such potential purchasers to the Commission and the Monitoring Trustee no later than 10 days after the end of every month following the Effective Date (or otherwise at the Commission's request).
- 12. The Parties shall inform the Commission and the Monitoring Trustee on the preparation of the data room documentation and the due diligence procedure and shall submit a copy of any information memorandum to the Commission and the Monitoring Trustee before sending the memorandum out to potential purchasers.

Section D. The Purchaser

- 13. In order to ensure the immediate restoration of effective competition, any Purchaser, in order to be approved by the Commission, must:
 - (a) be independent of and unconnected to the Parties;
 - (b) have the financial resources, proven expertise and incentive to maintain and develop the Divestment Business/es he intends to acquire as a viable and active competitive force in competition with the Parties and other competitors;
 - (c) neither be likely to create, in the light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed, and must, in particular, reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business(es) (the aforementioned criteria for the purchaser hereafter the "**Purchaser Requirements**").
- 14. The final binding sale and purchase agreements shall be conditional on the Commission's approval. When Agilent or Varian have reached an agreement with a proposed purchaser, Agilent shall submit a fully documented and reasoned proposal, including a copy of the final agreements, to the Commission and the Monitoring Trustee. Agilent must be able to demonstrate to the Commission that the proposed Purchaser meets the Purchaser Requirements and that the Divestment Business is being sold in a manner consistent with the Commitments. For the approval, the Commission shall verify that the proposed purchaser fulfils the Purchaser Requirements and that the Divestment Business is being sold in a manner consistent with the Commitments. The Commission may approve the sale of a Divestment Businesses without one or more Assets or parts of the Personnel, if this does not affect the viability and competitiveness of the Divestment Business after the sale, taking account of the proposed purchaser.

Section E. Trustee

Appointment Procedure

- 15. Agilent shall appoint a Monitoring Trustee and shall cause, as the case may be, Varian to empower the Monitoring Trustee to carry out the functions specified in the Commitments for a Monitoring Trustee. If Agilent or Varian have not entered into a binding sale and purchase

agreement for one or more of the Divestment Businesses one month before the end of the First Divestiture Period or if the Commission has rejected a purchaser of a Divestment Business proposed by Agilent at that time or thereafter, Agilent shall appoint a Divestiture Trustee and shall cause, as the case may be, Varian to empower the Divestiture Trustee to carry out the functions specified in the Commitments for a Divestiture Trustee. The appointment of the Divestiture Trustee shall take effect upon the commencement of the Extended Divestment Period.

16. The Trustee shall be independent of the Parties, possess the necessary qualifications to carry out its mandate, for example as an investment bank or consultant or auditor, and shall neither have nor become exposed to a conflict of interest. The Trustee shall be remunerated by the Parties in a way that does not impede the independent and effective fulfilment of its mandate. In particular, where the remuneration package of a Divestiture Trustee includes a success premium linked to the final sale value of a Divestment Business, the fee shall also be linked to a divestiture within the Trustee Divestiture Period.

Proposal by the Parties

17. No later than one week after the Effective Date, Agilent shall submit a list of one or more persons whom Agilent proposes to appoint as the Monitoring Trustee to the Commission for approval. No later than one month before the end of the First Divestiture Period, Agilent shall submit a list of one or more persons whom Agilent proposes to appoint as Divestiture Trustee to the Commission for approval. The proposal shall contain sufficient information for the Commission to verify that the proposed Trustee fulfils the requirements set out in paragraph 16 and shall include:

- (a) the full terms of the proposed mandate, which shall include all provisions necessary to enable the Trustee to fulfil its duties under these Commitments;
- (b) the outline of a work plan which describes how the Trustee intends to carry out its assigned tasks;
- (c) an indication whether the proposed Trustee is to act as both Monitoring Trustee and Divestiture Trustee or whether different trustees are proposed for the two functions.

Approval or rejection by the Commission

18. The Commission shall have the discretion to approve or reject the proposed Trustee(s) and to approve the proposed mandate subject to any modifications it deems necessary for the Trustee to fulfil its obligations. If only one name is approved, Agilent shall appoint or cause to be appointed, the individual or institution concerned as Trustee, in accordance with the mandate approved by the Commission. If more than one name is approved, Agilent shall be free to choose the Trustee to be appointed from among the names approved. The Trustee shall be appointed within one week of the Commission's approval, in accordance with the mandate approved by the Commission.

New proposal by the Parties

19. If all the proposed Trustees are rejected, Agilent shall submit the names of at least two more individuals or institutions within one week of being informed of the rejection, in accordance with the requirements and the procedure set out in paragraphs 15 and 18.

Trustee nominated by the Commission

20. If all further proposed Trustees are rejected by the Commission, the Commission shall nominate a Trustee, whom Agilent shall appoint, or cause to be appointed, in accordance with a trustee mandate approved by the Commission.

II. Functions of the Trustee

21. The Trustee shall assume its specified duties in order to ensure compliance with the Commitments. The Commission may, on its own initiative or at the request of the Trustee or Agilent, give any orders or instructions to the Trustee in order to ensure compliance with the conditions and obligations attached to the Decision.

Duties and obligations of the Monitoring Trustee

22. The Monitoring Trustee shall:

- (i) propose in its first report to the Commission a detailed work plan describing how it intends to monitor compliance with the obligations and conditions attached to the Decision.
- (ii) oversee the on-going management of the Divestment Businesses with a view to ensuring its continued economic viability, marketability and competitiveness and monitor compliance by Agilent with the conditions and obligations attached to the Decision. To that end the Monitoring Trustee shall:
 - (a) monitor the preservation of the economic viability, marketability and competitiveness of the Divestment Businesses, and the keeping separate of the Divestment Businesses from the businesses retained by the Parties, in accordance with paragraphs 5 and 6 of the Commitments;
 - (b) supervise the management of the Divestment Businesses as a distinct and saleable entity, in accordance with paragraph 7 of the Commitments;
 - (c) (i) in consultation with Agilent and Varian, determine all necessary measures to ensure that Agilent and Varian do not after the effective date obtain any business secrets, knowhow, commercial information, or any other information of a confidential or proprietary nature relating to the Divestment Businesses, in particular strive for the severing of the Divestment Businesses' participation in a central information technology network to the extent possible, without compromising the viability of the Divestment Businesses, and (ii) decide whether such information may be disclosed to Agilent and Varian as the disclosure is reasonably necessary to allow Agilent and Varian to carry out the divestiture or as the disclosure is required by law;
 - (d) monitor the splitting of assets and the allocation of Personnel between the Divestment Businesses and Agilent and Varian or Affiliated Undertakings of each of Agilent and Varian;
- (iii) assume the other functions assigned to the Monitoring Trustee under the conditions and obligations attached to the Decision;

- (iv) propose to Agilent such measures as the Monitoring Trustee considers necessary to ensure Agilent's compliance with the conditions and obligations attached to the Decision, in particular the maintenance of the full economic viability, marketability or competitiveness of the Divestment Businesses, the holding separate of the Divestment Businesses and the non-disclosure of competitively sensitive information;
- (v) review and assess potential purchasers as well as the progress of the divestiture process and verify that, dependent on the stage of the divestiture process, (a) potential purchasers receive sufficient information relating to the Divestment Businesses and the Personnel in particular by reviewing, if available, the data room documentation, the information memorandum and the due diligence process, and (b) potential purchasers are granted reasonable access to the Personnel;
- (vi) provide to the Commission, sending Agilent a non-confidential copy at the same time, a written report within 15 days after the end of every month. The report shall cover the operation and management of the Divestment Businesses so that the Commission can assess whether the businesses are held in a manner consistent with the Commitments and the progress of the divestiture process as well as potential purchasers. In addition to these reports, the Monitoring Trustee shall promptly report in writing to the Commission, sending Agilent a non-confidential copy at the same time, if it concludes on reasonable grounds that Agilent is failing to comply with these Commitments;
- (vii) within one week after receipt of the documented proposal referred to in paragraph 14, submit to the Commission a reasoned opinion as to the suitability and independence of any proposed purchaser and the viability of any of the Divestment Businesses after the Sale and as to whether all of the Divestment Businesses are sold in a manner consistent with the conditions and obligations attached to the Decision, in particular, if relevant, whether the Sale of any Divestment Business without one or more Assets or not all of the Personnel affects the viability of that Divestment Business after the sale, taking account of the proposed purchaser.

Duties and obligations of the Divestiture Trustee

23. Within the Trustee Divestiture Period, the Divestiture Trustee shall sell at no minimum price the Divestment Business/es to one or several purchasers, provided that the Commission has approved both the purchaser(s) and the final binding sale and purchase agreement(s) in accordance with the procedure laid down in paragraph 14. The Divestiture Trustee shall include in the sale and purchase agreement(s) such terms and conditions as it considers appropriate for an expedient sale in the Trustee Divestiture Period. In particular, the Divestiture Trustee may include in the sale and purchase agreement(s) such customary representations and warranties and indemnities as are reasonably required to effect the sale. The Divestiture Trustee shall protect the legitimate financial interests of Agilent, subject to the Parties' unconditional obligation to divest at no minimum price in the Trustee Divestiture Period.
24. In the Trustee Divestiture Period (or otherwise at the Commission's request), the Divestiture Trustee shall provide the Commission with a comprehensive monthly report written in English on the progress of the divestiture process. Such reports shall be submitted within 15 days after the end of every month with a simultaneous copy to the Monitoring Trustee and a non-confidential copy to the Parties.

III.

Duties and obligations of the Parties

25. Agilent shall provide and shall cause its advisors to provide the Trustee with all such cooperation, assistance and information as the Trustee may reasonably require to perform its tasks. The Trustee shall have full and complete access to any of Agilent's or the Divestment Businesses' books, records, documents, management or other personnel, facilities, sites and technical information necessary for fulfilling its duties under the Commitments and Agilent and the Divestment Businesses shall provide to and shall cause Varian or, where possible, the Divestment Businesses, to provide, the Trustee upon request with copies of any document. Agilent shall make available, or shall cause Varian or, where possible, the Divestment Businesses, to make available, to the Trustee one or more offices on their premises and shall be available for meetings in order to provide the Trustee with all information necessary for the performance of its tasks.
26. Agilent shall provide or shall cause Varian to provide the Monitoring Trustee with all managerial and administrative support that it may reasonably request on behalf of the management of the Divestment Businesses. This shall include all administrative support functions relating to the Divestment Businesses which are currently carried out at headquarters level. Agilent shall provide and shall cause its advisors to provide the Monitoring Trustee, on request, with the information submitted to potential purchasers, in particular give the Monitoring Trustee access to the data room documentation and all other information granted to potential purchasers in the due diligence procedure. Agilent shall inform, or shall cause Varian to inform, the Monitoring Trustee on possible purchasers, submit a list of potential purchasers, and keep the Monitoring Trustee informed of all developments in the divestiture process.
27. Agilent shall grant or procure Varian and Affiliated Undertakings to grant, comprehensive powers of attorney, duly executed, to the Divestiture Trustee to effect the sale, the Closing and all actions and declarations which the Divestiture Trustee considers necessary or appropriate to achieve the sale and the Closing, including the appointment of advisors to assist with the sale process. Upon request of the Divestiture Trustee, Agilent shall cause the documents required for effecting the sale and the Closing to be duly executed.
28. Agilent shall indemnify the Trustee and its employees and agents (each an "**Indemnified Party**") and hold each Indemnified Party harmless against, and hereby agrees that an Indemnified Party shall have no liability to Agilent for any liabilities arising out of the performance of the Trustee's duties under the Commitments, except to the extent that such liabilities result from the wilful default, recklessness, gross negligence or bad faith of the Trustee, its employees, agents or advisors.
29. At the expense of Agilent, the Trustee may appoint advisors (in particular for corporate finance or legal advice), subject to Agilent's approval (this approval not to be unreasonably withheld or delayed) if the Trustee considers the appointment of such advisors necessary or appropriate for the performance of its duties and obligations under the Mandate, provided that any fees and other expenses incurred by the Trustee are reasonable. Should Agilent refuse to approve the advisors proposed by the Trustee, the Commission may approve the appointment of such advisors instead, after having heard Agilent. Only the Trustee shall be entitled to issue instructions to the advisors. Paragraph 28 shall apply *mutatis mutandis*. In the Trustee Divestiture Period, the Divestiture Trustee may use advisors who served Agilent during the Divestiture Period if the Divestiture Trustee considers this in the best interest of an expedient sale.

IV. Replacement, discharge and reappointment of the Trustee

30. If the Trustee ceases to perform its functions under the Commitments or for any other good cause, including the exposure of the Trustee to a conflict of interest:
- (a) the Commission may, after hearing the Trustee, require Agilent to replace the Trustee; or
 - (b) Agilent, with the prior approval of the Commission, may replace the Trustee.
31. If the Trustee is removed according to paragraph 30, the Trustee may be required to continue in its function until a new Trustee is in place to whom the Trustee has effected a full hand over of all relevant information. The new Trustee shall be appointed in accordance with the procedure referred to in paragraphs 15-20.
32. Beside the removal according to paragraph 30, the Trustee shall cease to act as Trustee only after the Commission has discharged it from its duties after all the Commitments with which the Trustee has been entrusted have been implemented. However, the Commission may at any time require the reappointment of the Monitoring Trustee if it subsequently appears that the relevant remedies might not have been fully and properly implemented.

Section F. The Review Clause

33. The Commission may, where appropriate, in response to a request from Agilent showing good cause and accompanied by a report from the Monitoring Trustee:
- (i) Grant an extension of the time periods foreseen in the Commitments, or
 - (ii) Waive, modify or substitute, in exceptional circumstances, one or more of the undertakings in these Commitments.

Where Agilent seeks an extension of a time period, it shall submit a request to the Commission no later than one month before the expiry of that period, showing good cause. Only in exceptional circumstances shall Agilent be entitled to request an extension within the last month of any period.

SCHEDULE A

MICRO/PORTABLE GC COMMITMENT

1. Under the Micro/portable GC Commitment, Agilent will divest the Micro/portable GC Divestment Business. The Micro/portable GC Divestment Business as operated to date has the following legal and functional structure:

The Micro/portable GC Divestment Business is part of Agilent's [...].

2. Following paragraph 4 of the Commitments, the Micro/portable GC Divestment Business includes, but is not limited to:

(a) the following main tangible assets:

The following main equipment and machinery dedicated to the design, assembly and testing of micro/portable GCs (and those components incorporated therein during the manufacturing process) located in Agilent's [...] plants (the *Micro/portable GC Production Assets*):

Item	Description (English)	Qty	Function	Legal Entity
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]

operation of or are necessary to ensure the viability and the competitiveness of the Micro/portable GC Divestment Business;

- (ii) Perpetual, non-exclusive, non-transferrable⁴¹ royalty-free licences to all patents which contribute to the current operation of or are necessary to ensure the viability and the competitiveness of the Micro/portable GC Divestment Business, including but not necessarily limited to those set out in **Annex Schedule A (2)** with a field of use restriction (for use solely in connection with micro/portable GC products). Agilent will commit not to licence the relevant patents to competitors of the Purchaser or incorporate the intellectual property set forth in them into Varian's micro/portable GC products after Closing;
 - (iii) A non-exclusive, non-transferrable licence to Agilent's micro/portable GC injector hardware (insofar as not already covered by the patents listed in (ii) above);
 - (iv) Perpetual, non-exclusive, non-transferrable licences to Agilent's marketing materials, manuals, sourcecode for embedded micro/portable GC-specific software and support documents used in connection with the Micro/portable GC Divestment Business.
 - (v) Non-exclusive, non-transferrable licences to the trademarks listed in **Annex Schedule A (3)** for a transitional period of [...];
 - (vi) Perpetual, non-exclusive, non-transferable, royalty-free licences in respect of Cerity, the software associated with Agilent's micro/portable GC instruments, and the relevant source codes, in each case restricted to use in connection with micro/portable GCs; and, at the Purchaser's request, a licence of any relevant upgrades of Cerity (if any) and technical support for a period of [...] from the date of Closing on commercial terms;
 - (vii) A perpetual, non-exclusive, non-transferable, royalty-free licence, restricted to use in connection with micro/portable GCs, in respect of EZ Chrome Elite; as well as, at the Purchaser's request, a licence of any relevant upgrades of EZ Chrome Elite (if any) and technical support for a period of [...] from the date of Closing on commercial terms;
- (c) the following main licences, permits and authorisations: None.
- (d) the following main contracts, agreements, leases, commitments and understandings:
- (i) unfulfilled orders of Agilent' micro/portable GC business at the date of Closing;
 - (ii) ongoing warranty liabilities at the time of Closing;
 - (iii) the contracts with [...], relating to the supply of parts (mainly flow parts) and equipment maintenance services to the Micro/portable Divestment Business attached as **Annex Schedules A (4) and A (5)**, subject to [...] consent;
 - (iv) at the request of the Purchaser, the benefit of some or all of the distribution agreements with the distributors listed in **Annex Schedule A (7)** in relation to the distribution of micro/portable GC systems: subject to the relevant distributor's

⁴¹ except in case of change of control

consent (where required), Agilent will either assign (or otherwise transfer) the benefit of the relevant part of the relevant distribution agreements, or, if consent is required but is not given, Agilent will make the necessary arrangements for the continued distribution of the products of the Micro/portable GC Divestment Business;

- (v) at the request of the Purchaser, additional sales channel support, including access to three of Agilent's VARs, namely [...];
 - (vi) Agilent will not distribute Varian's micro/portable GC systems through any of the distributors listed in Annex Schedule A (7) or any of the VARs identifies in (v) above for a time period of [...] from Closing;
 - (vii) at the request of the Purchaser, [...] of training on Agilent's micro/portable GC product specifications and service repair;
- (e) the following customer, credit and other records:
- (i) customer lists;
 - (ii) finished goods inventory;
 - (iii) production data;
 - (iv) engineering records;
 - (v) all other business records used solely in the conduct of the Micro/portable GC Divestment Business (excluding Agilent's general ledgers and other corporate books and records);
- (f) at the purchaser's request, all or some of the following Key Personnel:[...] or, to the extent that there are any insurmountable obstacles to the transfer of this key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the Micro/portable GC Divestment Business;
- (g) at the Purchaser's request, the following additional Personnel listed in **Annex Schedule A (6)**.
3. At the Purchaser's request, the following supply arrangements:
- (a) Supply of manifold plates: supply of the Purchaser with manifold plates for a transitional period of up to [...] from Closing (terminable by the Purchaser after a shorter contract term);
 - (b) Other components: supply of the Purchaser with any other components required in the assembly of micro/portable GCs on the basis of a Transition Services Agreement for a duration of [...] after Closing (extendable by a further [...] at the Purchaser's request).
 - (c) After-sales service and support: provision of after-sales service and support (including spare parts) under a Transition Services Agreement for a transitional period of [...] after Closing (extendable by a further [...] at the Purchaser's request).
4. The Micro/portable GC Divestment Business shall not include:

Any IT systems, logistics, back office, overhead functions and ongoing service contracts.

SCHEDULE A – TABLE OF ANNEXES

No	Title
1	Annex Schedule A (1) – Micro/portable GC Production Assets
2	Annex Schedule A (2) – List of patents to be licensed to the Purchaser
3	Annex Schedule A (3) – List of trademarks to be licensed to the Purchaser
4	Annex Schedule A (4) - Supply contract with [...], relating to the supply of flow parts to the Micro/portable Divestment Business
5	Annex Schedule A (5) - Contract with [...], relating to the supply of equipment maintenance services to the Micro/portable Divestment Business
6	Annex Schedule A (6) – List of Personnel
7	Annex Schedule A (7) – Distributors which currently sell Agilent's micro/portable GC systems

ANNEX SCHEDULE A (1)

List of assets and equipment to be transferred as part of the Micro/Portable GC Divestment Business

[illegible]

ANNEX SCHEDULE A (2)

List of patents to be licensed to the Purchaser

[illegible]

Agilent case #	Patent no. / pub no.	Title	EPO link	USPTO link
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]

ANNEX SCHEDULE A (3)

List of Trademarks to be Licensed to the Purchaser

No	Trademark
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

ANNEX SCHEDULE A (6)

LIST OF AGILENT EMPLOYEES THAT AGILENT IS PROPOSING TO TRANSFER AS PART OF THE MICRO/PORTABLE GC DIVESTMENT BUSINESS

Employee	Role
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

ANNEX SCHEDULE A (7)

LIST OF AGILENT DISTRIBUTORS

[illegible]

	Supplier	Country
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]

SCHEDULE B

LABORATORY GC COMMITMENT

5. Under the Laboratory GC Commitment, Agilent will divest the Laboratory Divestment Business. The Laboratory GC Divestment Business as operated to date has the following legal and functional structure:

The Laboratory GC Divestment Business is part of the Varian business.

6. Following paragraph 4 of the Commitments, the Laboratory GC Divestment Business includes, but is not limited to:

(a) the following main tangible assets:

The following main equipment and machinery used in the design, assembly and testing of laboratory GC systems (and those components incorporated therein during the manufacturing process) located in Varian's [...] (the *Laboratory GC Production Assets*):

Item	Description	Qty	Function
[...]	[...]	[...]	[...]
...	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]

Item	Description	Qty	Function
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]

- (b) the following main intangible assets used in the design, assembly, testing and operation of Varian's laboratory GC instruments:
- (i) transfer of the ownership of all intellectual property rights and knowhow (including instrument operating manuals and documentation) used exclusively in relation to the Laboratory GC Divestment Business, including but not necessarily limited to those presented at **Annex Schedule B (1)**;
 - (ii) perpetual, exclusive, royalty-free licences with a field of use restriction (use only in connection with laboratory GC) for all intellectual property rights which are not used exclusively in relation to the Laboratory GC Divestment Business but also in relation to other Varian businesses, including but not necessarily limited to those presented at **Annex Schedule B (2)**;
 - (iii) perpetual, exclusive, royalty-free licences in respect of the software associated with Varian's laboratory GC instruments, Galaxie, and the relevant source codes, in each case restricted to use in connection with laboratory GCs; and – at the Purchaser's request – a licence of any relevant upgrades of Galaxie (if any) and technical support for a period of [...] from the date of Closing on commercial terms;
- (c) the following main licences, permits and authorisations: None.
- (d) the following main contracts, agreements, leases, commitments and understandings:
- (i) transfer of the the relationship with Varian's outsourcing partner [...] (regarding the manufacture of GC "cabinets" and other outsourcing services);
 - (ii) transfer of any agreements between Varian and its suppliers which relate exclusively to the Laboratory GC Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement) and, to the extent possible, the transfer of the relevant part (being that part relating to the Laboratory GC Divestment Business) of any agreement between Varian and its suppliers which relates to the Laboratory GC Divestment Business and also to other Varian businesses;
 - (iii) transfer of any agreements between Varian and its distributors which relate exclusively to the Laboratory GC Divestment Business (subject to any necessary

consents of the counter-party to the relevant agreement) and, to the extent possible, the transfer of the relevant part (being that part relating to the Laboratory GC Divestment Business) of any agreement between Varian and its distributors which relates to the Laboratory GC Divestment Business and also to other Varian businesses. Agilent will not distribute its own laboratory GC systems through any distributor that currently distributes Varian's laboratory GC system for a time period of [...] from Closing. A list of relevant distributors is set out at **Annex Schedule B (3)**;

- (iv) transfer of any agreements between Varian and its customers (excluding service contracts) which relate to the Laboratory GC Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement), including, but not limited to, the following temporary and transitional supply contracts:
 - (A) supply by the Laboratory GC Divestment Business, for a temporary period of [...] from the date of Closing, of laboratory GCs (and associated spare parts) to Varian's analyser business on terms and conditions to be agreed upon between the Prospective Purchaser and the merged entity;
 - (B) supply by the Laboratory GC Divestment Business, for a temporary period of [...] from the date of Closing, of laboratory GCs (and associated spare parts) to Varian's ion trap GC-MS business on terms and conditions to be agreed upon between the Prospective Purchaser and the merged entity and
 - (C) supply by the Laboratory GC Divestment Business, for a temporary period of up to [...] from the date of Closing, of laboratory GCs (and associated spare parts) to Varian's Triple Quadrupole GC-MS Divestment Business on the basis of [...]. Such agreement shall also contain provision for an option in favour of the Triple Quad Divestment Business to extend the duration of such supply agreement for a further [...] on terms to be agreed between the Triple Quad Divestment Business and the purchaser of the Laboratory GC Divestment Business.
- (v) unfulfilled customer orders of the Laboratory GC Divestment Business at the time of Closing;
- (e) the following customer, credit and other records:
 - (i) customer list;
 - (ii) finished goods inventory;
 - (iii) production data;
 - (iv) engineering records;
 - (v) all other business records used in the operation of the Laboratory GC Divestment Business;
- (f) the following Key Personnel:

Role	Name
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

To the extent that there are any insurmountable obstacles to the transfer of this key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the Laboratory GC Divestment Business will be put in place.

- (g) the following Personnel: at the Purchaser's request, up to a further [...] employees located within the relevant business functions as identified in **Annex Schedule B (4)**.
7. Agilent and Varian are prepared to transfer and enter into the following arrangements to support the Purchaser's ownership of the Laboratory GC Divestment Business and to maintain its economic viability and competitiveness:
- (a) at the Purchaser's request, supply to the Purchaser by Varian of autosamplers manufactured through Varian's third party manufacturer [...] at [...] for a transitional period of between [...] (extendable by a further [...] at the Purchaser's request);
 - (b) at the request of the Purchaser and to the extent this supply contracts cannot be assigned in accordance with paragraph 4(b)ii of the Commitments, supply to the Purchaser by Varian of autoinjectors (currently manufactured through a third party manufacturer) at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request).
 - (c) at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(b)ii of the Commitments, supply to the Purchaser by Varian of all components required in the assembly of Laboratory GC instruments at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request)
 - (d) at the Purchaser's request, assignment of the relevant part of two licence agreements which may be subject to the relevant counter party's consent; a list of these agreements is presented at **Annex Schedule B (5)**;
 - (e) at the Purchaser's request, transitional services to assist with the transfer of the Laboratory GC Divestment Business under a Transition Services Agreement for a transitional period of [...] (extendable by a further [...] at the Purchaser's request), including some or all of the following: manufacturing of laboratory GC Instruments, use

of Varian's laboratory GC manufacturing facilities at its [...], assistance with the physical move of assets, provision of know-how to support the start-up of operations in a new facility and know-how in relation to operation of existing machinery and systems, training of new and relocated employees, providing support for a shift to outsourced manufacturing, supply of spare parts, supporting the Purchaser in making its own arrangements relating to the procurement of any necessary components and maintaining relationships with the current customers and distributors of the Laboratory GC Divestment Business.

8. The Laboratory GC Divestment Business shall not include:

- (a) Any IT systems, logistics, back office and overhead functions apart from on a transitional basis under the TSA.

SCHEDULE – TABLE OF ANNEXES

No	Title
1	Annex Schedule B (1) – List of intellectual property rights and know-how used exclusively in relation to the Laboratory GC Divestment Business
2	Annex Schedule B (2) – List of intellectual property rights which are not used exclusively in relation to the Laboratory GC Divestment Business
3	Annex Schedule B (3) – Distributors which currently distribute Varian's Laboratory GC systems
4	Annex Schedule B (4) – Laboratory GC Divestment Business organisation chart
5	Annex Schedule B (5) – List of license agreements which may require counter-party consent

ANNEX SCHEDULE B (1)

LIST OF INTELLECTUAL PROPERTY RIGHTS AND KNOW-HOW USED EXCLUSIVELY IN RELATION TO THE LABORATORY GC DIVESTMENT BUSINESS

	Trademark/Copyright	Description	Status	Country
Trademarks exclusive to Laboratory GC business				
1.	[...]	[...]	[...]	[...]
2.	[...]	[...]	[...]	[...]
3.	[...]	[...]	[...]	[...]
4.	[...]	[...]	[...]	[...]
5.	[...]	[...]	[...]	[...]
6.	[...]	[...]	[...]	[...]
7.	[...]	[...]	[...]	[...]
8.	[...]	[...]	[...]	[...]
9.	[...]	[...]	[...]	[...]
Copyrights exclusive to Laboratory GC business				
1.	[...]	[...]	[...]	[...]

ANNEX SCHEDULE B (2)

**LIST OF INTELLECTUAL PROPERTY RIGHTS WHICH ARE NOT USED EXCLUSIVELY IN RELATION TO
THE LABORATORY GC DIVESTMENT BUSINESS**

LABORATORY GC PATENTS AND APPLICATIONS

[illegible]

	Title	Country	Application Number	Patent Number	Status
Patents and Applications Shared with other Varian Businesses					
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]

Laboratory GC Trademarks and Copyright

	Trademark/Copyright	Description	Status	Country
Trademarks shared with other Varian businesses				
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
Copyrights shared with other Varian businesses				
[...]	[...]	[...]	[...]	[...]

[illegible][illegible][illegible]

SCHEDULE B (5)

ROYALTY, LICENSING, DEVELOPMENT AND TECHNOLOGY AGREEMENTS

Party and Title of Agreement	IP Licensed	Execution Date	Exclusivity	Term	IP Ownership and Rights	Description
[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]

Item	Description (English)	Qty	Function
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]

(b) the following main intangible assets used in the design, assembly, testing and operation of Varian's triple quadrupole GC-MS instruments:

- (i) transfer of the ownership of all trademarks and copyrights (including instrument operating manuals and documentation) used exclusively in relation to the Triple Quadrupole GC-MS Divestment Business including but not necessarily limited to those presented at **Annex Schedule C (1)**;
- (ii) perpetual, exclusive, royalty-free licences with a field of use restriction (use only in connection with triple quadrupole GC-MS) for all patents and trademarks which are not used exclusively in relation to the Triple Quadrupole GC-MS Divestment Business but also in relation to other Varian businesses including but not necessarily limited to those presented at **Annex Schedule C (2)**;
- (iii) perpetual, exclusive, royalty-free licences in respect of MS Workstation, the software associated with Varian's triple quadrupole GC-MS instruments, and the relevant source codes, in each case restricted to use in connection with triple quadrupole GC-MS instruments; as well as, at the Purchaser's request, a licence of any relevant upgrades of MS Workstation (if any) and technical support for a period of [...] from the date of Closing on commercial terms;
- (iv) at the Purchaser's request, assignment of the relevant part of a licence agreement which may be subject to the relevant counter party's consent; details of this agreement are presented at **Annex Schedule C (3)**;
- (v) at the Purchaser's request, transfer of the benefit of various mass spectrometry software (so-called "libraries") agreements with third parties which are designed to operate specifically on Varian's instruments. Alternatively, and again at the Purchaser's request, Varian will assist the Purchaser in setting up its own

arrangements with the respective suppliers of the software. A list of all relevant software programmes is presented at **Annex Schedule C (4)**;

- (c) the following licences, permits and authorisations: None.
- (d) the following main contracts, agreements, leases, commitments and understandings:
 - (i) transfer of any agreements between Varian and its suppliers which relate exclusively to the Triple Quadrupole GC-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement), and to the extent possible, the transfer of the relevant part (being that part relating to the Triple Quadrupole GC-MS Divestment Business) of any agreement between Varian and its suppliers which relates to the Triple Quadrupole GC-MS Divestment Business and also to other Varian businesses;
 - (ii) transfer of any agreements between Varian and its distributors which relate exclusively to the Triple Quadrupole GC-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement), and to the extent possible, the transfer of the relevant part (being that part relating to the Triple Quadrupole GC-MS Divestment Business) of any agreement between Varian and its distributors which relates to the Triple Quadrupole GC-MS Divestment Business and also to other Varian businesses. Agilent will not distribute its own Triple Quadrupole GC-MS system through any distributor that currently distributes Varian's Triple Quadrupole GC-MS system for a time period of [...] from Closing. A list of relevant distributors is set out at **Annex Schedule C (6)**;
 - (iii) transfer of any agreements between Varian and its customers (excluding ongoing service contracts) which relate to the Triple Quadrupole GC-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement);
 - (iv) unfulfilled customer orders of the Triple Quadrupole GC-MS Divestment Business at the date of Closing;
- (e) the following customer, credit and other records:
 - (i) customer list;
 - (ii) finished goods inventory;
 - (iii) production data;
 - (iv) engineering records;
 - (v) all other business records used in the operation of the Triple Quadrupole GC-MS Divestment Business;
- (f) the following Key Personnel

Name	Role
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

To the extent that there are any insurmountable obstacles to the transfer of this key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the Triple Quadrupole GC-MS Divestment Business will be put in place.

- (g) the following Personnel: at the Purchaser's request, up to a further [...] employees located within the relevant business functions as identified in **Annex Schedule C (5)**.
11. Varian is prepared to transfer and enter into the following arrangements to support the Purchaser's ownership of the Triple Quadrupole GC-MS Divestment Business and to maintain its economic viability and competitiveness:
- (a) at the Purchaser's request, supply of the Purchaser with rotary and/or turbo pumps' vacuum components at [...] for a transitional period between [...] (extendable by a further [...] at the Purchaser's request);
 - (b) at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(c)ii of the Commitments, supply to the Purchaser by Varian of all components required in the assembly of Triple Quadrupole GC-MS instruments at [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request)
 - (c) at the Purchaser's request, a supply agreement with the Purchaser for the Laboratory GC Divestment Business (for incorporation by the Purchaser into triple quadrupole GC-MS systems) for a transitional period of [...], extendable at the purchaser's option for further [...] on conditions negotiated between the parties to the contract. The supply obligation under this agreement will be transferred as part of the divestment of the Varian laboratory GC business to the purchaser of that business;
 - (d) at the Purchaser's request, transitional services to assist with the transfer of the Triple Quadrupole GC-MS Divestment Business under a **Transition Services Agreement** for a transitional period of between [...] (extendable by a further [...] at the Purchaser's request), including some or all of the following: manufacturing of GC-MS Triple Quadrupole Instruments, use of Varian's Triple Quadrupole GC-MS manufacturing facilities at [...], assistance with the physical move of assets, provision of know-how to

support the start-up of operations in a new facility, training of new and relocated employees, providing support for a shift to outsourced manufacturing, supply of spare parts, supporting the Purchaser in making its own arrangements relating to the procurement of any necessary components, maintaining relationships with the customers and current distributors of the Triple Quadrupole GC-MS Divestment Business.

12. The Triple Quadrupole GC-MS Divestment Business shall not include:

- (a) [...];
- (b) any IT systems, logistics, back office and overhead functions, apart from on a transitional basis under the TSA; and
- (c) [...].

SCHEDULE – TABLE OF ANNEXES

No	Title
1.	Annex Schedule C (1) – List of trademarks and copyright used exclusively in relation to the Triple Quadrupole Divestment Business
2.	Annex Schedule C (2) – List of patents and trademarks which are not used exclusively in relation to the ICP-MS Divestment Business
3.	Annex Schedule C (3) – Details of license agreement which may require counter-party consent
4.	Annex Schedule C (4) - A list of all relevant software programmes (the so-called libraries)
5.	Annex Schedule C (5) – Triple Quadrupole Divestment Business organisation chart
6.	Annex Schedule C (6) – Distributors which currently distribute Varian's Triple Quadrupole GC-MS systems

ANNEX SCHEDULE C (1)

TRADEMARKS AND COPYRIGHT USED EXCLUSIVELY IN THE TRIPLE QUADRUPOLE DIVESTMENT BUSINESS

1. Copyright

Copyright	Status
[...]	[...]

2. Trademarks

Country	Trademark	Status	Description
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]

ANNEX SCHEDULE C (2)

PATENTS AND TRADEMARKS NOT USED EXCLUSIVELY IN RELATION TO THE TRIPLE QUADRUPOLE GC-MS DIVESTMENT BUSINESS

File no.	Country	Title	Inventor(s)	Status	File date	App No.	Pat no.	Issue date	Pub No.
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]

ANNEX SCHEDULE C (3)

ROYALTY, LICENSING, DEVELOPMENT AND TECHNOLOGY AGREEMENT

Party and Title of Agreement	IP Licensed	Execution Date	Exclusivity	Term	IP Ownership and Rights
[...]	[...]	[...]	[...]	[...]	[...]

ANNEX SCHEDULE C (4)
List of Software Programmes

No.	Software programmes	Third party
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]

ANNEX SCHEDULE C (5)

TRIPLE QUADRUPOLE GC-MS DIVESTMENT BUSINESS ORGANISATION CHART

[...]

	Distributor*
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

Notes:

- * Key distributors determined by revenue across all Varian products sold by dealer.
- ** Dealers with very low aggregate revenue, but with actual GC-MS sale during the period.

SCHEDULE D

ICP-MS COMMITMENT

13. Under the ICP-MS Commitment, Agilent will divest the ICP-MS Divestment Business. The ICP-MS Divestment Business as operated to date has the following legal and functional structure:

The ICP-MS Divestment Business is part of Varian's business.

14. Following paragraph 4 of the Commitments, the ICP-MS Divestment Business includes, but is not limited to:

(a) the following main tangible assets:

The following main equipment and machinery fully dedicated to the design, assembly and testing of ICP-MS systems (and those components incorporated therein during the manufacturing process) located in Varian's [...] (the *ICP-MS Production Assets*):

Item	Description	Qty	Function
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]

- (d) the following main contracts, agreements, leases, commitments and understandings:
- (i) transfer of any agreements between Varian and its suppliers which relate exclusively to the ICP-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement) and, to the extent possible, the transfer of the relevant part (being that part relating to the ICP-MS Divestment Business) of any agreement between Varian and its suppliers which relates to the ICP-MS Divestment Business and also to other Varian businesses;
 - (ii) transfer of any agreements between Varian and its distributors which relate exclusively to the ICP-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement) and, to the extent possible, the transfer of the relevant part (being that part relating to the ICP-MS Divestment Business) of any agreement between Varian and its distributors which relates to the ICP-MS Divestment Business and also to other Varian businesses. Agilent will not distribute its own ICP-MS system through any distributor that currently distributes Varian's ICP-MS system for a time period of [...] from Closing. A list of relevant distributors is set out at **Annex Schedule D (4)**;
 - (iii) transfer of any agreements between Varian and its customers (excluding service contracts) which relate to the ICP-MS Divestment Business (subject to any necessary consents of the counter-party to the relevant agreement);
 - (iv) unfulfilled customer orders of the ICP-MS Divestment Business at the date of Closing;
- (e) the following customer, credit and other records of the ICP-MS Divestment Business:
- (i) customer lists;
 - (ii) finished goods inventory;
 - (iii) production data;
 - (iv) manuals and engineering records;
 - (v) all other business records used in the operation of the ICP-MS Divestment Business;
- (f) the following Key Personnel:

Name	Role
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]
[...]	[...]

To the extent that there are any insurmountable obstacles to the transfer of this key personnel, appropriate arrangements, such as arrangements providing for training of and assistance to the Purchaser's employees, to ensure the continuity, viability and competitiveness of the ICP-MS Divestment Business will be put in place.

- (g) the following Personnel: at the Purchaser's request, up to a further 54 employees in the business functions identified in Annex Schedule D (3).

15. Varian is prepared to transfer and enter into the following arrangements to support the Purchaser's ownership of the ICP-MS Divestment Business and to maintain its economic viability and competitiveness:

- (a) at the Purchaser's request, supply to the Purchaser of rotary and turbo pumps to the Purchaser at cost [...] for a transitional period of between [...] (extendable by a further [...] at the Purchaser's request);
- (b) at the request of the Purchaser and to the extent that existing supply contracts with third parties cannot be assigned in accordance with paragraph 4(d)ii of the Commitments, supply to the Purchaser by Varian of all components required in the assembly of ICP-MS instruments [...] for a transitional period of between [...] from Closing (extendable by a further [...] at the Purchaser's request);
- (c) at the Purchaser's request, transitional services to assist with the transfer of the ICP-MS Divestment Business under a Transition Services Agreement for a period of between [...] (extendable by a further [...] at the Purchaser's request), including some or all of the following: manufacture of ICP-MS instruments, use of Varian's ICP-MS manufacturing facilities at [...], operation – on the Purchaser's behalf – of two manufacturing shifts per day, assistance with the physical move of assets, provision of know-how to support the start-up of operations in a new facility, training of new and relocated employees, provision of support for a shift to outsourced manufacturing, supply of spare parts, supporting the Purchaser in making its own arrangements relating to the procurement of any necessary components, and maintaining relationships with the current customers and distributors of the ICP-MS Divestment Business.

16. The ICP-MS Divestment Business shall not include:

- (a) Any IT systems, logistics, back office and overhead functions, apart from on a transitional basis under the TSA.

SCHEDULE – TABLE OF ANNEXES

No	Title
1.	Annex Schedule D (1) – List of trademarks and copyright used exclusively in relation to the ICP-MS Divestment Business
2.	Annex Schedule D (2) – List of patents and trademarks which are not used exclusively in relation to the ICP-MS Divestment Business
3.	Annex Schedule D (3) – ICP-MS Divestment Business organisation chart
4.	Annex Schedule D (4) – Distributors which currently distribute Varian's ICP-MS systems

ANNEX SCHEDULE D (1)

**TRADEMARKS AND COPYRIGHT USED EXCLUSIVELY IN RELATION TO THE
ICP-MS DIVESTMENT BUSINESS**

	Trademark/copyright	Description	Status	Country
Trademarks shared with other Varian businesses				
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
[...]	[...]	[...]	[...]	[...]
Copyrights exclusive to ICP-MS business				
[...]	[...]	-	[...]	[...]
[...]	[...]	-	[...]	-

ANNEX SCHEDULE D (2)

PATENTS, LICENCES AND TRADEMARKS SHARED WITH OTHER VARIAN BUSINESSES

1. Royalty, Licensing, Development and Technology Agreements

Party and Title of Agreement	IP Licensed	Execution Date	Royalty obligations	Exclusivity	Term	IP Ownership and Rights	Description
[...]	[...]	[...]	[...]	[...]	[...]	[...]	[...]

2. ICP-MS trademarks

Trademark/copyright	Description	Status	Country
[...]	[...]	[...]	[...]

ANNEX SCHEDULE D (3)

ICP-MS DIVESTMENT BUSINESS ORGANISATION CHART

[...]

ANNEX SCHEDULE D (4)

LIST OF VARIAN ICP-MS DISTRIBUTORS

[illegible]

	Distributor	Country
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]
[...]	[...]	[...]

Notes:

* Denotes distributors that have sold a Varian ICP-MS product in FY 2009.